

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RICHARD BALLARD and MARTHA SIMMONS,

Plaintiffs,

-against-

CITY OF NEW YORK; P.O. RYAN COURTEN,
Shield No. 3855, Tax: 948818, individually and in
his/her official capacities; and NYPD Officers JOHN
and JANE DOE 1 through 10, individually and in their
official capacities (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 19, 2019

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
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New York, New York 10279
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TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. RYAN COURTEN, Shield No. 3855, Tax: 948818
Canine Team
140 58th Street
Brooklyn, NY 11220

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PLAINTIFFS RICHARD BALLARD and MARTHA SIMMONS, by their attorney, the
LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges
as follows:

FACTS

1. PLAINTIFF RICHARD BALLARD, is an African American male and has been
at all relevant times a resident of Kings County in the City and State of New York.
2. PLAINTIFF MARTHA SIMMONS, is an African American female and has been
at all relevant times a resident of Kings County in the City and State of New York.
3. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

5. At all times relevant defendants P.O. RYAN COURTEN, Shield No. 3855, Tax: 948818; and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFFS does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

9. On or about August 19, 2017, at or around 6:10 A.M., PLAINTIFFS were lawfully within the vicinity of 340 Dumont Avenue, Kings County, New York, visiting a friend, Ms. Harris, who resided at the location.

10. Several unidentified New York City Police Officers, including defendants COURTEN and the DOE defendants, entered the afore-mentioned residence where PLAINTIFFS were guests.

11. PLAINTIFFS, along with Ms. Harris, were sleeping in a bedroom when several police officers in riot gear and guns drawn burst into the room and told them all to get down onto the floor. PLAINTIFFS and Harris complied.

12. Despite the fact that PLAINTIFFS complied with the officers' orders and defendants had no probable cause to believe that PLAINTIFFS had committed any crimes or offenses, defendants placed PLAINTIFFS and Harris into handcuffs.

13. Moreover, defendants officers proceeded to unlawfully search PLAINTIFFS.

14. Defendants recovered no contraband from PLAINTIFFS, and PLAINTIFFS were not in possession, constructively or otherwise, of any contraband.

15. Specifically, there was no contraband in plain view, and PLAINTIFFS had no knowledge of any contraband within the residence.

16. Despite the fact that defendants had no probable cause to believe that PLAINTIFFS had committed any crimes or offenses, defendants placed PLAINTIFFS and Ms. Harris under arrest.

17. PLAINTIFFS were subsequently transported to the police precinct where they were subjected to an invasive search. At this time, PLAINTIFFS learned that they were being charged with criminal possession of drugs and a weapon, that were allegedly secreted within the apartment.

18. At the precinct the defendant officers, including defendant COURTEN, falsely informed employees of the Kings County District Attorney's Office ("DA's Office") that they had observed PLAINTIFFS commit various crimes/offenses.

19. Neither COURTEN, nor the DOE defendants observed PLAINTIFFS violate any laws / ordinances.

20. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations. PLAINTIFFS were not in possession of drugs or weapons. In fact, they were simply visiting the apartment and police had no probable cause to believe that they were in possession of any contraband allegedly recovered.

21. Notwithstanding, defendants forwarded these false allegations to the DA's Office in order to justify the unlawful search and arrest of PLAINTIFFS and to persuade the DA's Office to commence and/ or continue the criminal prosecution of PLAINTIFFS.

22. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFFS. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

23. PLAINTIFFS remained in the precinct for an extended amount of time, before being transported to Central Booking.

24. From Central Booking, PLAINTIFFS were arraigned and sent to Rikers Island, where they remained in custody for an extended period of time.

25. PLAINTIFFS' criminal cases were subsequently dismissed on or about August 24, 2017.

26. PLAINTIFFS suffered damage as a result of defendants' actions. PLAINTIFFS were deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

CLAIM ONE
Under State and Federal Law
UNLAWFUL SEARCH AND SEIZURE

29. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

30. As a result of the aforesaid conduct by defendants, PLAINTIFFS' person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM TWO
Under State and Federal Law
FALSE ARREST

31. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

32. Defendants police officers arrested PLAINTIFFS in the absence of probable cause and without a valid warrant and without PLAINTIFFS' consent.

33. As a result of the aforesaid conduct by defendants, PLAINTIFFS were subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFFS' rights.

CLAIM THREE
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

37. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

38. The individual defendants issued legal process to place PLAINTIFFS under arrest.

39. The Municipal Defendants arrested PLAINTIFFS in order to obtain collateral objectives outside the legitimate ends of the legal process.

40. The Municipal Defendants acted with intent to do harm to PLAINTIFFS without excuse or justification.

41. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR
Under State and Federal Law
MALICIOUS PROSECUTION

42. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

43. By their conduct, as described herein, defendants are liable to PLAINTIFFS for having committed malicious prosecution under the laws of the State of New York.

44. Defendants maliciously commenced criminal proceeding against PLAINTIFFS, falsely accusing PLAINTIFFS of violating the law.

45. Defendants falsely and without probable cause charged PLAINTIFFS with violations of the laws of the State of New York.

46. The commencement and continuation of the criminal proceedings against PLAINTIFFS was malicious and without probable cause.

47. All charges were terminated in PLAINTIFFS' favor.

48. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFFS. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

49. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFFS sustained the damages alleged herein.

CLAIM FIVE
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO A FAIR TRIAL

50. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

51. Defendants created false evidence against PLAINTIFFS.

52. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

53. Defendants misled the prosecutors by creating false evidence against PLAINTIFFS and thereafter providing false testimony throughout the criminal proceedings.

54. In creating false evidence against PLAINTIFFS, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFFS' constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

55. As a result of the foregoing, PLAINTIFFS' liberty was restricted for an extended period of time, were put in fear for PLAINTIFFS' safety, and were humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM SIX
Under Federal Law
FAILURE TO INTERVENE

56. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

57. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such

conduct, had a duty to intervene and prevent such conduct and failed to intervene.

58. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

59. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained the damages hereinbefore alleged.

CLAIM SEVEN
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

60. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

61. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

62. All of the aforementioned acts deprived PLAINTIFFS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

63. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

64. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM EIGHT
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

66. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

67. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

68. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

69. Due to the negligence of the defendants as set forth above, PLAINTIFFS suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM NINE
Under Federal Law
MUNICIPAL LIABILITY

76. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

78. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFFS.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFFS as alleged herein.

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFFS as alleged herein.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFFS' constitutional rights.

83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFFS' constitutional rights.

84. The acts complained of deprived the PLAINTIFFS of their right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFFS respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
July 19, 2019



Katherine E. Smith
233 Broadway, Ste. 900
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiffs

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorney for PLAINTIFFS RICHARD BALLARD and MARTHA SIMMONS in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFFS is that the PLAINTIFFS are not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
July 19, 2019



Katherine E. Smith